

WRITTEN SUBMISSIONS · 16 MAR 1998

McDonald's written submissions in reply — part 2

TYPE	DATE	PARTIES
Pleadings / procedural document	16 Mar 1998	From McDonald's France

SUMMARY SHEET

Written submissions in reply of McDonald's France — part 2 · 16 March 1998

Overview: written submissions in reply filed by McDonald's France (counsel and SCP Vincent Molas Léger Cusin, hearing agent) against the companies SEBOL, B et O, LES PINS and Bernard Collorafi, in the joined proceedings RG 97.062486 and 98.010823.

Key points

McDonald's accepts the joinder of the two proceedings, requested in its writ of summons of 30 January 1998 and accepted by the opposing parties in their written submissions of 9 February. Responding to those pleadings, it disputes the value of a “profit and loss statement” dated 13 April 1987 (opposing party's document 25), which it describes as a handwritten, unsigned document, a mere projection without commitment, and recalls clause 28.c of the licence agreement excluding any guarantee of future profitability. It produces the trend in turnover of the Antibes 1 restaurant: 27,422,009 F in 1993, 26,965,840 F in 1994, 24,638,840 F in 1995, 18,305,795 F in 1996, then a consolidated turnover of 31,556,286 F in 1997 for the three restaurants. It attributes the decline to external causes (changes to the Carrefour car parks, opening of a Quick, the “mad cow” scare). It points out that Collorafi received 5,039,500 F in gross remuneration within SEBOL from August 1987 to the end of 1996, and quantifies the opposing claims as rising from 35,000,000 F in the writ of summons to 47,050,000 F in the written submissions.

Significance

A document of McDonald's defence at first instance, intended to refute the existence of commitments as to results and to present the franchisee as having been profitable over a long period.

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Source: bernardcollorafi.org/en/documents/written-submissions-reply-mcdonalds-profitability-paris-commercial-court-p2-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.